

25STCV20674 25STCV20674

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Division: Civil Law and Motion
Department: 506
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Case Number: 25STCV20674 Hearing Date: September 15, 2026 Dept: 506

SUPERIOR
COURT OF THE STATE OF CALIFORNIA

FOR THE
COUNTY OF LOS ANGELES - CENTRAL DISTRICT

NYJHERI CARNELL, et al.,

Plaintiffs,

vs.

SIMONE 2015 LP, et al.,

Defendants.

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CASE NO.: 25STCV20674

[TENTATIVE] ORDER GRANTING IN PART PLAINTIFFS'
MOTION TO COMPEL DEPOSITIONS OF DEFENDANT'S PMKS

Dept. 506

8:30 a.m.

September 15, 2026

On July 14, 2025, Plaintiffs
filed this action against Defendants Simone 2015 LP and SRHT Property Management
Company.

On
June 2, 2026, Plaintiffs served Notices of Deposition of Defendants' Persons Most
Knowledgeable ("PMKs"), noticing depositions on July 14, 2026. (Motion, Ex. A.)

On
July 8, 2026, Defendants served objections to each topic and to each request for
production of documents. (Motion, Ex. B.)

On
August 12, 2026, Plaintiffs filed this motion to compel the PMK depositions.

If
a party or an officer, director, managing agent, employee of a party, or person
designated as the person most qualified to testify fails to appear for examination
or produce documents without having served a valid objection under Section 2025.410,

the demanding party may move to compel attendance, testimony, and production. (Code Civ. Proc., § 2025.450, subd. (a).) Section 2025.410 provides for written objections to a deposition notice “that does not comply with Article 2 (commencing with Section 2025.210).” (Code Civ. Proc., § 2025.410., subd. (a).) Valid objections relate to timing of the service of the deposition notice, form and contents of the notice, location of the deposition, and length of the deposition. (Code Civ. Proc., §§ 2025.210, 2025.220, 2025.230, 2025.240, 2025.250, 2025.260, 2025.290.)

Defendants

objected to the deposition topics and document categories. These are not valid objections under Section 2025.410. Defendants could have, but did not, move for a protective order directing that the depositions not be taken or that aspects of the deposition be limited. (Code Civ. Proc., § 2025.420.)

Defendants

argue that Simone 2015 LP is no longer in business, and “[i]f Plaintiffs believe a particular individual has information relevant to their claims, Plaintiffs may seek that person’s testimony through the discovery procedures applicable to an individual witness.” (Opposition at p. 4.) But it is Defendants’ duty, not Plaintiffs’, to designate its own PMKs from its officers, directors, managing agents, employees, or agents. (Code Civ. Proc., § 2025.230.) Again, if Defendants are unable to produce a witness, it is their duty to seek a protective order. (Code Civ. Proc., § 2025.420.)

The

exception is SRHT Property Management Company. On August 6, 2026, SRHT Property Management Company filed a Notice of Stay of Proceedings (Bankruptcy). That stay remains in place with respect to proceedings against the bankrupt party.

Accordingly,

the motion is GRANTED IN PART.

The

motion is granted as to Simone 2015 LP. Simone 2015 LP is ordered to produce its PMK for a deposition no later than October 31, 2026.

The

motion is denied as to SRHT Property Management Company.

The

request for sanctions is granted in part.

Simone 2015 LP and its counsel, jointly and severally, are ordered to pay total sanctions of \$2,000.00 to Plaintiffs within 30 days.

Moving

party to give notice.

Parties

who intend to submit on this tentative must send an email to the Court at SMCDEPT506@lacourt.ca.gov

indicating intention to submit. If all parties

in the case submit on the tentative ruling, no appearances before the Court are required unless a companion hearing (for example, a Case Management Conference) is also on calendar.

Dated this 15th day of September 2026

Hon. Thomas D. Long

Judge of the Superior

Court